

GORSUCH, J., dissenting

Perhaps the first real roots of the separate sovereigns exception can be traced to this Court's 1852 decision in *Moore v. Illinois*.⁸⁰ As it did five years later and more notoriously in *Dred Scott*,⁸¹ the Court in *Moore* did violence to the Constitution in the name of protecting slavery and slaveowners. In *Dred Scott*, the Court held that the Due Process Clause prevented Congress from prohibiting slavery in the territories, though of course the Clause did nothing of the sort.⁸² And in *Moore*, the Court upheld a state fugitive slave law that it judged important because the States supposedly needed "to protect themselves against the influx either of liberated or fugitive slaves, and to repel from their soil a population likely to become burdensome and injurious, either as paupers or criminals."⁸³ The defendant, who had harbored a fugitive slave, objected that upholding the state law could potentially expose him to double prosecutions by the state and federal governments. The Court rejected that argument, reasoning simply that such double punishment could be consistent with the Constitution if the defendant had violated both state and federal law.⁸⁴ Yet notably, even here, the Court did not actually approve a successive prosecution.

Nor did the trajectory of the separate sovereigns exception improve much from there. The first time the Court actually approved an "instance of double prosecution [and] failed to find some remedy . . . to avoid it" didn't arrive until 1922.⁸⁵ In that case, *United States v. Lanza*,⁸⁶ the federal government prosecuted the defendants for manufacturing, transporting, and possessing alcohol in violation of the Na-

⁸⁰ 14 How. 13.

⁸¹ 19 How. 393.

⁸² *Id.*, at 450.

⁸³ *Moore*, 14 How., at 18.

⁸⁴ *Id.*, at 16.

⁸⁵ Grant, *The Lanza Rule of Successive Prosecutions*, 32 Colum. L. Rev. 1309, 1311 (1932).

⁸⁶ 260 U. S. 377 (1922).